

02 Open Items Register

02 Open Items Register (INTERNAL, running)

#	Item	Owner	Needed for	Status
1	Written consent path and status with Al Ahly Sabbour: unit allocation, collection assignment, encumbrances; release of landlord interest in retained units (its 35% on retained units is settled only in years 8-10)	You / counsel	Option A, security	Open
2	Confirm 80M / 85M down payments (not 200M); fix Summary!B3:B4	You	Reconciliation C2	Open (assumed 80 / 85)
3	L'avenir basis 595.3 net / 908.7 cost	You	Reconciliation C1	Closed: confirmed
4	Discount rate 14% kept (CBE overnight deposit rate is 19%)	You	All NPVs	Closed: keep 14%
5	Delivery-payment timing (collected 12-18m / 9-15m before handover): contract wording and legality to be evidenced in the data room	You / counsel	Peak funding, Option B	Open: confirmed contractual, evidence needed
6	Sellable admin area (10,129 / 10,437 m2 vs BUA 8,682 / 8,946)	You	Sales value	Open
7	Sales price evidence and basis for 200->300 / 360 retail and 125->200 / 240 office; retail comparables	You	Deck, DD memo	Open
8	Construction cost source (x8 multiplier, EGP 53.5k/m2), LA cost not scaled to BUA, no cost inflation	You	DD memo	Open
9	Pre-construction/design/permit budget (I assumed 10.5M)	You	Use of funds	Open
10	Jalour track record, completed projects, team bios, audited financials	You	Deck, Memo	Open
11	Permits, licences, land title status for each plot	You	DD memo	Provided after the investor signs an NDA
12	Legal entity: SPV name, jurisdiction; investor holds equity, loan or contractual entitlement	You / counsel	Tax, enforceability	Open
13	No Jalour guarantee of return (your decision: avoid). Recommended substitutes in the DD memo: distribution lock-up, unit collateral, sponsor funding undertaking limited to project funding gaps	You / counsel	Option B	Open: confirm wording
14	Secondary transfer of unit allocations: permitted? fee?	You / counsel	Option A	Open (assumed 3% friction)
15	Regulatory position on a private placement of this kind in Egypt (FRA) - for counsel	Counsel	All	Open
16	Foreign investor eligibility; FX and repatriation	Counsel	All	Open
17	Option A face value basis: launch list price	You	Option A	Closed: launch list
18	Return level: units 2.0x at launch list; cash 2.3x	You	Both	Closed
19	Source workbook holds data beyond these two projects; never share it or extracts	You	Disclosure	Noted

#	Item	Owner	Needed for	Status
20	Funding date: GS month -3, LA month 0 assumed (own timelines; the month the landlord down payment falls due); escrow release milestones	You	Funding plan	Open
21	Separate project bank account rule (Decree 2184/2022): Jalour's position is that it does not apply to these plots. Basis to be placed in the data room (provided after NDA)	Jalour	Structure	Closed per Jalour; evidence after NDA
22	Landlord (Al Ahly Sabbour) written consent to allocate launch-price units to an investor and to the assignment of those contracts	You / counsel	Option A	Open
23	Sponsor funding undertaking: gaps to be covered from Jalour's cash reserves and cash from other projects it is constructing (your answer). Peak gap in stress / downside is GS 269 / 441, LA 244 / 849 (EGP m). Document the form and any cap; the packs disclose that capacity is not ring-fenced and depends on those other projects	You / counsel	All packs	Open: documentation
24	Project-company separation: packs say each project sits in its own company with no cross-collateral or cross-default and no ring-fenced accounts. Confirm	You / counsel	Disclosure	Open
25	Market data in the packs comes from search summaries of broker reports. You asked to see the fact-base file first (_build/market_research.md, sent); verification against originals follows your review	You / Team	Deck, Memo	Open: your review first
26	Launch-tranche unit availability: Option A allocates units from the first two sales tranches (months 3 and 6 on each project's own timeline); confirm those units are not committed elsewhere and the unit list	You	Option A	Open
27	Price comparison: packs now compare launch, average realised and delivery list prices with your 40% to 60% range and with today's office asking prices (GS offices +77% over asking, about 15% a year; LA +112%, about 18% a year)	You	Deck, Memo	For your review
28	Growth-a-year comparison assumes today is December 2026 (the combined model's month 1); months in all packs now count from each project's own sales launch	You	Memo	Open
29	Decided: an investor paying 125M puts 62.5M into each project (the only 125M case). They receive the COMBINED_125M pack showing both projects; the six single-project packs stay separate. The NDA covers everything. Counsel to review the NDA template (both versions), governing law and forum	You / counsel	COMBINED_125M, NDA_Template in every pack	Open: counsel
30	In the combined stress cases both projects are short together (combined downside peak shortage 1,089 vs 441 and 849 separately). Funding undertaking from reserves and other projects' cash therefore needs reserves beyond these two projects; confirm capacity and any cap	You	COMBINED_125M (and sponsor capacity in all packs)	Decision needed
31	NDA template: parties, definitions of Representatives, term, governing law (Egypt) and arbitration seat (CRCICA) are bracketed placeholders; non-circumvention clause scope; confirm Jalour entity that signs	You / counsel	NDA_Template.docx	Open
32	Standalone models (Green_Square.xlsx, Lavenir.xlsx) adopted as source: cash flows are identical to the combined model but each project's month 1 is its own sales launch (GS shifted 6 months, LA 12). Project NPVs change only by timing: GS 229.9 (was 215.3), LA 350.6 (was 307.5). Handover is month 42 in both. In the combined pack the two projects are put on one common calendar (GS launch = month 1, L'avenir launch = month 7, as in the combined model): confirm this relative start	You	All packs, COMBINED_125M	Open: confirm
33	Per your instruction the packs no longer mention any retained units. The landlord share is shown as calculated on the full project sales value (GS 2,816 / LA 3,342) while the sales plan is 2,253 / 2,674, so an investor will see the gap between the two figures. Counsel to confirm that this presentation is complete and not misleading	You / counsel	All packs	Open: counsel